

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

JOINT MOTION TO AMEND THE SCHEDULING ORDER

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant PKDC, LLC ("Complainant" or "PKDC"), and Respondent CMA CGM S.A. ("Respondent" or "CMA CGM" and, collectively with PKDC, the "Parties"), by their respective undersigned counsel, hereby jointly submit this Joint Motion to Amend The Scheduling Order ("Motion") to allow for sufficient time to work through discovery disputes and for the completion of discovery and the development of a full record in this matter. As discussed below, good cause exists for the instant Motion.

I. Background

On January 21, 2025, the Presiding Officer entered a scheduling order ("Scheduling Order") with the following deadlines relevant to this Motion:

March 31, 2025	Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer)
April 25, 2025	Completion of productions of documents and ESI in response to initial RFPs
May 6, 2025	Disclosure of initial expert reports, if any
May 6, 2025	Last day to serve interrogatories, requests for admission, and RFPs
May 20, 2025	Complete depositions of fact witnesses

May 20, 2025	Disclosure of rebuttal expert reports, if any
June 6, 2025	Complete expert depositions
June 6, 2025	Close of discovery
July 8, 2025	Complainant's initial brief, proposed findings of fact, and appendix
August 7, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
August 22, 2025	Complainant's reply and responses to proposed findings of fact

In accordance with the Scheduling Order, the Parties served their initial interrogatories and RFPs on February 7, 2025. PKDC served CMA CGM with 27 interrogatories and 47 RFPs, some of which contained multiple sub- parts. CMA CGM served PKDC with 19 interrogatories and 16 RFPs, some of which contained multiple sub-parts.

The Parties then exchanged objections and responses to their respective interrogatories and RFPs on March 14, as required by the Scheduling Order. Given the number of interrogatories and RFPs, there were a substantial number of objections and potential disputes.

Since the exchange of objections and responses, the parties have been diligently working together to address each sides' objections by discussing potential narrowing of certain requests in an effort to obviate or limit the need for motions to compel. To aid in the process, the parties made two previous motions for short extensions of the deadline for the submission of unresolved disputes concerning initial RFPs and interrogatories **without** extending any additional Scheduling Order deadlines.

The parties continue to make progress. Since the grant of the second motion for an extension of time to submit discovery disputes, on April 11, 2025, PKDC sent a follow up letter in a further attempt for resolution of disputes, and on April 22, 2025, the parties again

met to work through discovery issues. CMA CGM has indicated that it is in the process of responding to the April 11 Letter and the parties will meet there after for a final discussion. However, more time is needed to finish this process. Further, as explained below, as a result of the complexity of the instant matter and voluminous nature of the discovery involved, additional time has become necessary to complete discovery.

II. Argument

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." The Parties submit good cause exists in this instance.

a. Extension of Deadline for Submission of Discovery Disputes

First, pursuant to 46 C.F.R. §502.141(h), it is the responsibility of the Parties to resolve to the fullest extent possible disputes relating to discovery matters. The Parties are endeavoring to fulfill that responsibility and thereby conserve the resources of both the Parties and the Commission by avoiding, or at least minimizing, the need for motions to compel and have made great progress. A further short extension of the deadline to submit will enable the Parties to complete this work in orderly fashion and avoid the need to submit motions with respect to issues that may be resolved in whole or in part if they receive a small amount of additional time. The current deadline for the submission of unresolved disputes is April 24, 2025, and we seek an additional 14 days for this deadline to and including May 8, 2025.

b. Extension of Deadlines of Discovery and Briefing

Next, FMC regulations require discovery to be completed within 150 days of a respondent's answer (46 C.F.R. 502.141(g)) which is sufficient time for many disputes.

However, this matter involves a multitude of complex claims, a request for substantial reparations, and relevant discovery span multiple years. Indeed, each party is already in the process of collecting and reviewing several tens of thousands of documents for relevance, confidentiality, any required redactions, and privileges ahead of production. The parties have met and conferred and agree that 60 days will be necessary to complete review and production.

The parties note that in complex matters such as the instant case, policy considerations favor allowing sufficient time to develop a complete evidentiary record. In *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2024 WL 4357751, at *1 (ALJ Sept. 23, 2024), it was emphasized that the policy and responsibility of the Commission, and by delegation of authority, the presiding judge, is to inquire into and consider all relevant facts. Adherence to a schedule should not override these policy considerations. *See also Anderson International Transport and Own Anderson - Possible Violations of Sections 8(a) and 19 of the Shipping Act of 1984*, Dkt. No. 07-02, 2009 WL 6084172, at *2 (FMC Dec. 4, 2009) (reopening the record because Commission precedent “favors the agency making its decision based on the most complete record available”). Indeed, the FMC has recently allowed for additional time in similar instances. For example, a 62-day extension to complete discovery was granted in *One Banana North America Corp. v. Hapag-Lloyd AG and Hapag-Lloyd (America) LLC*, FMC Docket No. 22-03, Revised Scheduling Order, June 22, 2022; a 60-day extension to complete discovery was granted in *Intermodal Motor Carriers Conference, American Trucking Associations, Inc. v. Ocean Carrier Equipment Management Association Inc., et al*, FMC Docket No. 20-14, Amended Scheduling Order, June 9, 2021; and a 60-day extension to complete discovery was in *Bed Bath & Beyond Inc., v. Yang Ming Marine Transport Corp.* FMC Docket No. 23-10, Revised

Scheduling Order, Order on Motions, January 11, 2024.

III. Proposed Amended Schedule

Given that the parties are still working diligently to resolve as many discovery disputes as possible without unnecessarily burdening the Commission, and the voluminous nature of the discovery necessary in the instant matter, the parties respectfully request a 14-day extension for the submission of unresolved disputes and a 60-day extension to complete discovery as follows:

May 8, 2025	Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer)
June 24, 2025	Completion of productions of documents and ESI in response to initial RFPs
July 7, 2025	Disclosure of initial expert reports, if any
July 7, 2025	Last day to serve interrogatories, requests for admission, and RFPs
July 18, 2025	Complete depositions of fact witnesses
July 18, 2025	Disclosure of rebuttal expert reports, if any
August 5, 2025	Complete expert depositions
August 5, 2025	Close of discovery
September 5, 2025	Complainant's initial brief, proposed findings of fact, and appendix
October 6, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
October 21, 2025	Complainant's reply and responses to proposed findings of fact

WHEREFORE, the Parties jointly pray that this joint Motion for an extension be granted.

Dated: April 22, 2024

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

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